

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
GABRIEL VERAS,

Plaintiff,

-against-

Plaintiff designates
New York County as the
place of trial

Basis of venue is
county of occurrence

SUMMONS

THE CITY OF NEW YORK and
NYPD OFFICER ANDREW CARRASQUILLO,

Defendants.
----- X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 1, 2021

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York: c/o NYC Corporation Counsel, 100 Church St., New York, NY 10007

-NYPD Officer Andrew Carrasquillo: c/o NYPD 30th Pct., 451 West 151st Street, NYC 10031

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
GABRIEL VERAS,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
NYPD OFFICER ANDREW CARRASQUILLO,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his
complaint herein, alleges as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

2. That prior to the institution of this action, and within ninety (90) days of the accrual of the causes of action, a notice of claim and intention to sue was duly served upon and filed with defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

3. That at all times herein mentioned, the City operated, controlled, managed, and maintained The New York Police Department (hereinafter the “NYPD”).

4. That at all times herein mentioned, NYPD Officer Andrew Carrasquillo (hereinafter “Carrasquillo”) was and is a police officer employed by the NYPD.

5. That at all times herein mentioned, Carrasquillo was acting within the course and scope of his employment with the NYPD.

6. That at all times herein mentioned, Carrasquillo was acting under color of state law.

THE FACTS

7. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

8. That on or about January 16, 2020, inside the NYPD 30th Precinct, in the County of New York, City and State of New York, plaintiff was arrested by members of the NYPD, including but not limited to Carrasquillo, without a warrant and without probable cause to believe that plaintiff had committed or was about to commit a crime, and without otherwise being justified.

9. That following his arrest, plaintiff was forcibly confined and imprisoned at various other locations, including police precincts and Central Booking.

10. That on or about January 16, 2020, members of the NYPD, including but not limited to Carrasquillo, initiated and/or caused to be initiated a prosecution of plaintiff, charging plaintiff with Criminal Possession of Marijuana in the First Degree, a felony crime of which plaintiff was innocent and of which defendants did not have probable cause to believe plaintiff was guilty.

11. That in support of the aforementioned prosecution, Carrasquillo signed a Criminal Court Complaint in which he made allegations against plaintiff that were false and that Carrasquillo knew to be false.

12. That in support of the aforementioned prosecution, Carrasquillo knowingly conveyed false information and statements to fellow officers and to the Office of the District Attorney, and knowingly withheld exculpatory evidence from fellow officers and from the Office of

the District Attorney.

13. That the aforementioned false information and statements provided by Carrasquillo, and the exculpatory evidence withheld by Carrasquillo, constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's decision on plaintiff's guilt or innocence.

14. That as a result of aforementioned actions by defendants, plaintiff was compelled to appear in court and sustained a deprivation of his liberty and his right to travel.

15. That as a further result of the aforementioned actions by defendants, plaintiff was adjudicated to be in violation of his probation, and was incarcerated for a period of approximately two weeks.

16. That on or about September 16, 2020, all charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

17. That the aforementioned actions by Carrasquillo were malicious and intentional in nature.

18. That as a result of the foregoing, plaintiff suffered physical and psychological injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, was deprived of his liberty and freedom, incurred and will continue to incur economic loss, and was otherwise damaged.

19. That all of the causes of action asserted herein fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(State Law Claim for False Arrest/Imprisonment)

20. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

21. That the aforesaid actions by Carrasquillo and the other NYPD officers constitute a false arrest and false imprisonment under New York State law, for which Carrasquillo and the other officers are liable and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST CARRASQUILLO

(False Arrest Under 42 U.S.C. § 1983)

22. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

23. That the aforesaid actions by Carrasquillo constitute a false arrest and false imprisonment and a seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS

(State Law Claim for Malicious Prosecution)

24. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

25. That the aforesaid actions by Carrasquillo and the other NYPD officers constitute a malicious prosecution under New York State law, for which Carrasquillo and the other officers are liable and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST CARRASQUILLO

(Malicious Prosecution Under 42 U.S.C. § 1983)

26. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

27. That the aforesaid actions by Carrasquillo constitute a malicious prosecution and a seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST CARRASQUILLO

(Denial of Right to Fair Trial Under 42 USC Section 1983)

28. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

29. That the aforesaid actions by Carrasquillo in withholding exculpatory evidence and in making false statements and conveying false evidence to fellow officers and to the District Attorney in support of plaintiff's prosecution constituted a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 USC Section 1983.

FIFTH CAUSE OF ACTION AGAINST THE CITY

(Negligent Hiring, Training, Supervision, and Retention)

30. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

31. That the aforesaid actions by Carrasquillo and the other NYPD officers, and the resulting injuries to plaintiff, followed and were the result of the negligence of the City in its hiring, training, supervision, and retention of Carrasquillo and the other NYPD officers.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against Carrasquillo, and attorney's fees against Carrasquillo pursuant to

42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
April 1, 2021

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By *Edward Sivin*
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
April 1, 2021

Edward Sivin

EDWARD SIVIN